

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,

Petitioner

VS.

COURTNEY MEHTA,

Respondent

) Case Number: FDI-25-802312

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHILD SUPPORT, ATTORNEY FEES AND COSTS, SANCTIONS,
CORRECTION OF ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). They share one minor child: Aadi Caleb Mehta (DOB: 10/22/23).
- 2) At the prior 3/17/26 hearing (per the Findings and Order After Hearing (FOAH) filed 4/3/26), the Court, in pertinent part:
 - a. Granted Father's request to bifurcate the validity of the parties' premarital agreement and compel arbitration. See section B(1) – B(5).
 - b. Ordered Father to pay Mother \$3,184 in guideline child support effective 4/1/26, with child support arrears as follows:
 - i. Father's parenting time at 5% for the period of time from 12/16/25 (filing date of the Request for Order) - 2/7/26 (the date on which Mother secured employment); and

1 ii. Father's parenting time at 8% for the period of time from 2/8/26 (the date on
2 which Mother secured employment) - 3/31/26 (present). See section B(10) and
3 B(11).

4 3) On 6/16/26, Father filed a Request for Order seeking: (a) correction of the Court's 3/17/26 FOAH
5 (filed 4/3/26) due to a clerical error omitting Mother's income; (b) modification of child support
6 based on Father's increased parenting time to 17% as of 5/14/26; (c) Mother ordered to reimburse
7 Father \$2,629.76 in overpaid child support for the period of 4/3/26 - 6/16/26; and (d) Family
8 Code section 271 in the amount of \$5,556. Father asserts that Mother has repeatedly delayed the
9 arbitration process.

10 4) On 7/20/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order.
11 Mother asserts that: (a) the Court adopted and ordered Mother's proposed timeshare in the 4/3/26
12 orders; (b) neither party argued for the inclusion of Mother's income at the 4/3/26 hearing; and
13 (c) Mother is committed to engaging in arbitration and is not delaying the process; however, there
14 is no imposed deadline for arbitration.

15 5) On 7/20/26, Mother filed a Memorandum of Points and Authorities.

16 6) On 7/20/26, Mother filed an Income and Expense Declaration.

17 7) On 7/30/26, Counsel for Father filed a Reply Declaration of Counsel in Support of Request for
18 Order augmenting the Family Code section 271 sanctions request to \$24,988.72.

19 8) On 7/30/26, Father filed a Statement of Support Calculations.

20 9) On 7/30/26, Father filed a Reply Memorandum of Points and Authorities.

21 10) On 8/3/26, Counsel for Mother filed a declaration regarding Father's failure to file and serve an
22 updated Income and Expense Declaration seeking a continuance and \$2,140 in attorney's fees
23 under Family Code section 271 and 2030.

24 11) On 8/3/26, Father filed an Income and Expense Declaration.

25 12) On 8/3/26, Counsel for Mother filed a declaration regarding prejudice to Mother.

26 **B. Findings and Order**

27 1) Father's request for correction of the Court's 3/17/26 FOAH (filed 4/3/26) due to a clerical error
28 omitting Mother's income in the child support calculation attached as "XSpouse B" is
29 GRANTED.

- 2) The Court will issue an amended 3/17/26 FOAH, which includes Mother's income (\$10,833) on "X Spouse B" attached to the 3/17/26 FOAH (filed 4/3/26), with updated arrears calculations.
- 3) Father's request for modification of child support based on Father's increased parenting time to 17% as of 5/14/26 is also GRANTED as an increase in parenting time qualifies as a change in circumstances warranting modification of child support.
- 4) However, the Court finds good cause to CONTINUE Father's request for modification of child support based on his increased parenting time (to 17% as of 5/14/26) given Father's untimely filing of his Income and Expense Declaration.
- 5) As such, the matter is **CONTINUED to 9/1/26 at 9 AM in Dept. 403** for the purpose of recalculating support effective 5/14/26 and determination of any reimbursement Mother's owes to Father for overpayment of child support from 2/8/26 to present.
- 6) Both parties shall file updated Statement of Support Calculations by 8/20/26.
- 7) The parties shall meet and confer prior to the 9/1/26 hearing to attempt to reach an agreement regarding: (a) modification of support; and (b) any reimbursement Mother's owes to Father for overpayment of support that occurred (i) as a result of the Court's clerical error for the period of 2/8/26 - 5/13/26; and (ii) due to modification of support effective 5/14/26.
- 8) Father's request for Family Code section 271 sanctions is GRANTED in the amount of \$5,000. The Court finds Mother's conduct frustrated the policy of law to promote settlement. The Court reserves jurisdiction over payment of these sanctions to the time of trial.
- 9) Mother's request for Family Code section 271 sanctions is DENIED.
- 10) Counsel for Father shall prepare the Findings and Order After Hearing.
- 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).